

Court No. - 29

Case :- WRIT - C No. - 44487 of 2009

Petitioner :- M/S J. K. Foods Corporation

Respondent :- State Of U.P. & Others

Petitioner Counsel :- B. C. Rai

Respondent Counsel :- C. S. C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Pankaj Mithal, J.

As prayed by Shri B.C. Rai, learned counsel for the petitioner, put up as fresh on 27.8.2009.

Date :- 25.8.2009

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Court No. - 29

Case :- WRIT - C No. - 44487 of 2009

Petitioner :- M/S J. K. Foods Corporation

Respondent :- State Of U.P. & Others

Petitioner Counsel :- B. C. Rai

Respondent Counsel :- C. S. C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Pankaj Mithal, J.

As prayed, put-up as fresh on 31st August, 2009.

Order Date :- 27.8.2009

Ajeet

Court No. - 29

Case :- WRIT - C No. - 44487 of 2009

Petitioner :- M/S J. K. Foods Corporation

Respondent :- State Of U.P. & Others

Petitioner Counsel :- B. C. Rai

Respondent Counsel :- C. S. C., Rajesh Tripathi

Hon'ble Sunil Ambwani, J.

Hon'ble Ran Vijai Singh, J.

Shri Rajesh Tripathi is allowed ten day's time to file counter affidavit, annexing all the bills, which are sought to be realised from the petitioner. He will also file earlier bills in respect of which, it is alleged that they were never sent and that the amounts were deposited on adhoc basis, whenever the demand was made.

List on 15.9.2009.

Order Date :- 1.9.2009

RKP

Court No. - 21

Case :- WRIT - C No. - 44487 of 2009

Petitioner :- M/S J. K. Foods Corporation

Respondent :- State of U.P. and Others

Counsel for Petitioner :- B. C. Rai

Counsel for Respondent :- C. S. C., Rajesh Tripathi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

List on 25.1.2023 showing name of Sri Baleshwar Chaturvedi as counsel for the respondents.

Order Date :- 17.1.2023

Arif

(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 44487 of 2009

Petitioner :- M/S J. K. Foods Corporation

Respondent :- State of U.P. and Others

Counsel for Petitioner :- B. C. Rai

Counsel for Respondent :- C. S. C., Rajesh Tripathi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

The instant petition has been filed challenging the recovery citation dated 24.6.2009 issued by respondent no. 4 and the recovery certificate dated 6.6.2009 for recovery of electricity dues from the petitioner.

The case of the petitioner is that he had filed a complaint before the District Consumer Forum disputing the correctness of the bills being raised by the respondents. The complaint was disposed of by the Consumer Forum by order dated 2.4.2008 where the respondent-Electricity Department was directed to provide complete accounts to the petitioner after making adjustment of the amounts already paid. The specific case of the petitioner is that the said direction was not complied with by the respondents and instead they proceeded to issue the impugned recovery.

Sri B.C. Rai, learned counsel appearing for the petitioner submits that the petitioner be permitted to file objection in terms of Clause 6.5 of the Electricity Supply Code, 2005 and respondent no. 2 may be directed to decide the same before proceeding to recover any amount from the petitioner.

Sri Ashutosh Dwivedi, learned counsel holding brief of Sri Baleshwar Chaturvedi, learned counsel appearing on behalf of respondent nos. 1 and 2 has no objection to the same.

Accordingly, the writ petition is disposed of by providing that the petitioner will file objection before respondent no. 2 within two weeks from today and in which event respondent no. 2 will decide the same by means of a speaking order and the impugned recovery will abide by the decision to be taken by respondent no. 2 on the representation of the petitioner.

Order Date :- 25.1.2023

VMA

(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)